Republic of Kosovo

Republic of Kosovo - Republic of Kosovo

Government - Vlada – Government

Ministria e Financave, - Ministarstvo Finansija - Ministry of Finance

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ADMINISTRATIVE INSTRUCTION (MF) NO. 01/2026 ON THE USE OF ELECTRONIC FISCAL DEVICES, FISCAL SYSTEMS AND ELECTRONIC FISCAL SOFTWARE

Minister of Finance,

Pursuant to Article 7, paragraph 5 and Article 121 of Law No. 08/L-257 on the Administration of Tax Procedures, and Article 11 of Law No. 08/L-117 on the Government of the Republic of Kosovo

Approves:

ADMINISTRATIVE INSTRUCTION (MF) NO. 01/2026 ON THE USE OF ELECTRONIC FISCAL DEVICES, FISCAL SYSTEMS AND ELECTRONIC FISCAL SOFTWARE

CHAPTER I
GENERAL PROVISIONS

Article 1
Purpose

1. This Administrative Instruction (hereinafter: the Instruction) determines the rules, criteria, obligations, deadlines and procedures that must be followed regarding the issuance of fiscal coupons during the performance of economic activities in the territory of the Republic of Kosovo, as well as the means to encourage consumers to obtain fiscal coupons.

2. The provisions of this Instruction guarantee the continuity of the functioning of Electronic Fiscal Devices/Fiscal Systems prior to the entry into force of this Instruction.

Article 2
Scope

The provisions of this Instruction are mandatory for the Tax Administration of Kosovo, taxpayers, manufacturers/developers and maintainers of Electronic Fiscal Devices/Fiscal Systems and Electronic Fiscal Software, as well as for all other entities involved in the fiscalization process and other issues included in this Instruction.

Article 3
Abbreviations

1. For purposes of this Instruction the following abbreviations have the following meanings:

1.1. **2D Barcode** – Electronic signature generated through encryption of data in the Fiscal Document;

1.2. **FCR** – **Fiscal Cash Register**;

1.3. **API** – Application Programming Interface;

1.4. **KBRA** – Kosovo Business Registration Agency;

1.5. **TAK –** Tax Administration of Kosovo;

1.6. **FCRD** – Fiscal Cash Register Division;

1.7. **FD** – Fiscal Document, like any document printed by EFD/FS/EFS, which is signed with a 2D barcode encrypted by the TAK Server;

1.8. **E-POS -** Electronic Point of Sale;

1.9. **EPROM** – Erasable Programmable Read Only Memory);

1.10. **GPRS** – Standard for wireless communication (General Packet Radio Service);

1.11. **JSON** – JavaScript Object Notation;

1.12. **CC** – Crypto Card, secure media for storing ciphers (encryption /decryption certificate);

1.13. **MC** – Memory Card;

1.14. **SCM** – Safe Crypto Module, (data encryption);

1.15. **QR Code** – A two-dimensional quick response barcode used to easily and quickly access information;

1.16. **MF** – Ministry of Finance,

1.17. **UINFV** – Unique Identification Number of Fiscal Coupon;

1.18. **EO** – Economic Operator authorized for the supply, installation, verification, repair and maintenance of EFE/FS;

1.19. **PC** – Personal computer;

1.20. **PDF** – Portable Document Format;

1.21. **EFE/FS** – Electronic Fiscal Equipment/Fiscal System;

1.22. **FP** – Fiscal Printer;

1.23. **PKI** – Public Key Infrastructure;

1.24. **POS** – Point of Sale;

1.25. **Protobuf –** Protocol Data Format (Protocol Buffers);

1.26. **PROM –** Programmable ROM (Programmable Read Only Memory);

1.27. **ROM** – Read Only Memory;

1.28. **EFS** – Electronic Fiscal Software;

1.29. **TCP/IP** – Transmission Control Protocol/Internet Protocol;

1.30. **IT** – Information Technology;

1.31. **TT** – Tax Terminal;

1.32. **VPN** – Virtual Private Network;

1.33. **ECJ**– Electronic Control Journal (memory card); and

1.34. **EFSD** – Electronic Fiscal Software Developer.

Article 4
Definitions

1. For purposes of this Instruction, the following definitions have the following meanings and contents:

1.1. **Electronic Fiscal Equipment / Fiscal System -** a computerized electronic equipment or system used to issue sales receipts for retail transactions. EFE/FS includes those electronic devices, such as: fiscal cash registers, fiscal printers and fiscal systems for special activities. A EFE/FS includes fiscal memory, daily working memory, firmware, accurate time, coupon printing mechanism, as well as connecting control units for keyboards, TT, SCM, MC, ECJ, displays and input and output data transmission sub-units (such as scanners), which are provided to be part of the system. All components provided and functions of EFE/FS are

approved or authorized by FCRD, while the supporting software (firmware) or other verification mechanism of the functions of EFE/FS must be at the disposal of TAK;

1.2. **Electronic Fiscal Software -** Electronic software developed to record and report taxpayers' financial transactions in an automated manner and in accordance with tax legislation in the Republic of Kosovo. Through EFS, supplies of goods and/or services for retail transactions are recorded, a fiscal coupon is generated and data is reported in real time to the TAK information system;

1.3. **Fiscal cash registers -** are electronic recorders of the supply of goods and/or services, cash registers that are specially equipped with fiscal memory, fiscal seals and other options and equipment as defined in the technical and functional specifications published by TAK;

1.4. **Fiscal memory -** is a stored and secure medium, it is a sub-unit in which all fiscal information is stored and kept unchangeable in the EFE/FS. Fiscal memory is programmed as read-only memory (read-only, EPROM, erasable programmed ROM, or PROM, programmed ROM). Fiscal memory circuits are protected in a special box which is located in a specially designed part, which is an integral part of the PEF housing. The fiscal memory also includes a component (casing) that records any removal or intervention in the EFE/FS housing;

1.5. **Fiscal data network -** is the communication network between the EFE/FS and the TAK Information System that deals with the encrypted transmission of fiscal data through the KMS;

1.6. **Fiscal Cash Register Division –** A division established within the TAK Organizational Structure, responsible for the management of EFE/FS/FES, to review and approve EFE/FS, economic operators for the supply, installation and maintenance of EFE/FS and Authorized EFE/FS Technicians**;**

1.7. **End consumer –** means a non-business natural person who uses the purchased goods and/or services for personal needs. Also, a final consumer may be considered a business natural person, legal person, partnership, and grouping or association of persons including consortia and public authorities who uses the purchased goods and/or services for business needs and not for the purpose of resale or development of their activities;

1.8. **Fiscal coupon –** is a document in which the supply of goods and/or services at the point of sale to the final consumer is recorded. The fiscal coupon is generated by the EFE/FS/FES, which is printed on paper or can be sent electronically for specific supplies (electronic supplies). The specific characteristics of the fiscal coupon are: fiscal logo and signature with 2D barcode (QR Code). Other characteristics will be defined in the document of specific technical and functional requirements for the EFE/FS/FES;

1.9. **Firmware -** Software built for the EFE to operate**;**

1.10. **Carcass -** Memory or special space within the fiscal memory for recording interventions in the EFE/FS lodge;

1.11. **. TAK Information System -** Computer system that receives/sends commands and encrypted data to traffic recording systems**;**

1.12. **Subscription -** Periodic fee that enables data transfer from EFE/FS to the TAK Information System via GPRS technology;

1.13. **Internet -** A global interconnected network of computers and other electronic devices that uses standard communication protocols (such as TCP/IP) to exchange information; and

1.14. **Payment method -** Payment via cash, debit card, credit card, bank account, check, SMS or any other equivalent payment instrument.

2. Other terms used in this Instruction have the same meaning as in the applicable Law on the Administration of Tax Procedures (hereinafter: the Law).

CHAPTER II
OBLIGATION TO ISSUE A FISCAL COUPON

Article 5
Persons who must issue fiscal coupons

1. All persons who supply goods and/or services to the final consumer, regardless of the method of payment, issue fiscal coupons for those services.

2. Notwithstanding paragraph 1 of this Article, a person who provides free supplies of goods and/or services to the end consumer, for tax purposes, is obliged to issue a fiscal receipt for that supply.

3. Exceptionally to paragraph 1 of this Article, all persons who supply goods and/or services to natural persons, legal entities and other persons (except the final consumer when they must issue fiscal coupons) shall use the tax invoice, as defined by the tax legislation in force.

4. The relevant Minister of Finance, may, by special decision, exempt any other category of taxpayers from the obligation to issue a fiscal coupon.

Article 6
The moment of issuing the fiscal coupon

1. Printing and giving the fiscal coupon to the consumer is mandatory at the moment of payment for the supply of goods and/or services .

2. Printing and issuing a fiscal receipt to the consumer is also mandatory for any payment made before the supply of goods or before the completion of the supply of services.

3. Exceptionally to paragraph 1 of this Article, in cases where the supply of goods and/or services occurs, but payment is made later (with a payment term) as agreed by both parties, the printing and issuance of a fiscal receipt to the consumer is mandatory at the time of supply of the goods and/or services.

Article 7
Contents of the fiscal coupon

1. The fiscal coupon is compiled based on the specific and technical requirements for EFE/FS/FES approved by the Director General of TAK.

2. The fiscal coupon contains, at least, the following information:

   2.1. Unique Identification Number/Fiscal Number of the taxpayer;

   2.2. VAT number, if the taxpayer is registered for VAT;

   2.3. Name of the taxpayer;

   2.4. Taxpayer's address;

   2.5. The name of the person (operator) and his/her identification number;

   2.6. At least one line for each item :

      2.6.1 quantity;

      2.6.2 unit price;

      2.6.3 the name of the item or service;

      2.6.4 the value of the supply quantity;

2.6.5 the relevant VAT rate marked with a specific letter for each item supplied;

2.7. The percentage (or value) of the discount and its amount with a minus sign or the percentage (or value) of the increase, if any, per item;

2.8. The amount of the subtotal, the percentage (or value) of the discount on it and its amount with a minus sign, the percentage (or value) of the surplus, if any;

2.9. Total amount for payment;

2.10. The amount paid in various payment methods, such as: cash, credit card, debit card; bank account, coupon; check, SMS, etc.;

2.11. The amount of tax according to different active tax rates;

2.12. Total amount excluding tax;

2.13. Date, hour and minutes of release;

2.14. EFE/FS/FES identification number;

2.15. Daily fiscal coupon number;

2.16. QR code;

2.17. Unique Identification Number of the Fiscal Coupon (for verification of the fiscal coupon);

2.18. Logo – RKS;

2.19. The type of coupon (regular, cancellation, return, etc.); and

2.20. Free text, etc.

CHAPTER III
ELECTRONIC FISCAL EQUIPMENT AND FISCAL SYSTEMS

Article 8
Persons obliged to install Electronic Fiscal Equipment and/or Fiscal Systems

1. The persons obliged for EFE/FSA are taxpayers defined in Article 5 of this Instruction, who exercise economic activity, in retail sales, in the provision of services in places or units open to the public or any other similar activity, are obliged to use the EFE/FS and other mandatory

devices for the registration and verification of the supply of goods and/or services.

2. Pursuant to paragraph 1 of this Article, the following categories aren't obliged:

2.1. Enterprises that provide energy services, utility services, telecommunications services, banking and/or financial services (including money transfer services, microfinance institution services, financial leasing services), as well as other public enterprises that, for goods sold and/or services provided, are paid compensation by consumers based on consumption calculation invoices through measuring instruments (electricity, heating, water, telephone) or any other method of billing, such as waste management companies, etc.;

2.2 Activities of public government institutions, including but not limited to artistic and literary creations, theatrical arts activities, activities of artistic institutions, library, archive and museum activities;

2.3 A person (business) who provides supplies of goods and/or services only to a person engaged in economic activity (business). This person is obliged to issue a tax invoice, as defined by the tax legislation in force.

3. The person to whom the obligation specified in paragraph 2 of this article refers and who simultaneously carries out activities that are not exempted or exempt from the obligation of registration through EFE/FS and of data transfer through the terminal to the TAK Information system, within the meaning of paragraph 1 of this article, will be obliged to register each individual transaction during the performance of these activities through EFE/FS, as well as to transfer them the records through terminal to TAK server.

4. In the event of any change in the use of the PEF/SF (location, sale, transfer, deregistration, cessation of economic activity or similar), the user of the PEF/SF must notify the ATK, in accordance with the procedures established by the ATK.

5. The relevant Minister of Finance, in addition to the exceptions set out in paragraph 2 of this article, may, by special decision, exempt any other category of taxpayers from the obligation to install a EFE/FS.

Article 9
Types of Electronic Fiscal Equipment and Fiscal Systems

1. The general description of the EFE/FS is as follows:

1.1. The EFE model includes the Fiscal Cash Register (FCR), the Fiscal Printer (FP) as well as Electronic Point of Sale Systems, connected devices, data transmission devices and systems that include:

1.1.1. Non-portable Fiscal Cash Register "stand-alone" or independent and independent portable, and Points Systems Electronic Point of Sale Systems for recording and storing data in accordance with the decision of the General Director of TAK;

1.1.2. The Fiscal Cash Register has intangible fiscal memory and working memory; and

1.1.3. The data to be recorded and stored in memory (working memory) and in the fiscal memory) are related to the goods sold and services provided to consumers, by printing the fiscal report, as required by the legislation in force;

1.2. The fiscal printer is a EFE with all the relevant features and is managed through an application software and can be used as:

1.2.1. Personal computer (PC) based POS;

1.2.2. A separate electronic fiscal system with fiscal memory for recording retail sales turnover for:

1.2.2.1. Derivate of petroleum through computing devices/systems for the sale of liquid fuels (gas pumps, gasoline, and similar);

1.2.2.2. Car wash, parking, transportation, and other services; and

1.2.2.3. Special categories that may be determined later by decision of the Director General of TAK.

Article 10
The definition EFE types

1. EFE/s are equipment with fiscal memory and working memory, in which data on supplies of goods and/or services to customers are recorded in an adequate manner, so as to enable printing, as well as to enable the transfer and further processing of this data, as described in this Instruction.

2. EFE/s must operate in such a way that general data is stored for each transaction in the fiscal memory and memory card, preventing any change or manipulation of the data before, during and after the preservation at the fiscal memory. These data are transmitted to TAK as a daily summary.

3. EFE/s should have a special parameter to regulate the status of multilingualism, in accordance with the legislation into force on the use of official languages in the Republic of Kosovo.

4. There are the following types of EFE/s authorized to operate in Kosovo, which may be classified as follows:

   4.1. Portable Fiscal Cash register;

   4.2. Non-portable Fiscal Cash register; and

   4.3. Electronic Point of Sale System, with authorized components such as fiscal printers, electronic fiscal devices to be installed and integrated with the existing point of sales systems.

Article 11
Portable and Non-Portable Fiscal Cash Registers

1. The portable and non-portable cash register through which the circulation of goods and/or services is recorded should have the following functions:

   1.1. The portable cash register must have appropriate dimensions and have installed rechargeable batteries, which enable printing at least ten thousand (10,000) lines without recharging of batteries. Such an FCR is not required to have a consumer monitor;

   1.2. The portable cash register must have an incorporated TT or an interface for connecting and using an external TT;

   1.3. The non-portable cash register must have a customer monitor, interface to control withdrawal of cash and at least one interface for connecting to a barcode scanner;

   1.4. Every EFE should have a specific serial number which is registered with TAK as well as serial number of fiscal memory.

2. The cash register can be connected to a computer, either directly or through a computer network.

3. No computer software is allowed to change the data in fiscal memory.

4. The fiscal cash register must have software with an independent fiscal module protected from changes and deletions, using standard functions for registering goods and/or services, displaying and managing data entry in the fiscal memory.

5. The cash register must have the ability to print a fiscal coupon for supplies made to each customer.

6. The cash register must have the ability to record all daily transactions, maintained in an electronic journal of accounts as provided for in this Instruction.

7. The cash register should have the opportunity to print management reports without deletion, such as: “report X” (cash in the drawer), “report Z” (daily closing report) as well as various periodic reports.

8. The cash register should have the opportunity to cancel items on the receipt before printing, while returning items is done through a return/cancellation receipt (refund).

9. An FCR may also have additional equipment such as: barcode scanning devices and credit card payment terminals or other equipment that may be authorized by a special decision by the Director General of TAK.

Article 12
Point of Sale System with Fiscal Printer as a Coupon Printer

1. Point of sale fiscal systems should only use the fiscal printer. In such a system, the fiscal printer should be connected to the control unit at the POS. It is typical and much more flexible for the control unit to be a computer guided by a software program.

2. Each fiscal printer in the system must have a unique serial number, which is registered in TAK as well as serial number of fiscal memory.

3. Point of sale (POS) systems are different, the functional and technical specifications will provide for the same obligations and liabilities with which they are charged. users of Fiscal Cash Registers, but NOT WILL to mandate WAY that HOW WILL THE these obligations are fulfilled.

Article 13
Embedded Software and Hardware

1. The embedded hardware includes the microprocessor or microcontroller, as well as other components. The embedded software, called “firmware,” acts as a fiscal data management system and also acts as a control program for the equipment.

2. The software and hardware used by the EFE user must transfer fiscal encrypted data in required format through SCM and TT in the TAK server.

3. The installation of any EFE, by an authorized person, is done in a way that prevents changes to the original authorized software and hardware. Once the software and hardware are

installed, any modification is done only by an authorized technician.

Article 14
The External Application Software included in POS Fiscal Systems

1. The external application software included in the POS fiscal system supports the rest of the system functions for data management (accounting and similar).

2. In cases where the application software is linked to the content of fiscal coupons, the authorized person who performs the installation, together with the user, as well as the authorized person for the POS software, provide written confirmation to TAK that the software functions properly in accordance with the specifications and conditions for data security. Testing, which must be carried out before the EFE is in function, must confirm that the software that generates fiscal coupons operates in full compliance with the tax legal requirements for books and registers, with the requirements of this Instruction, with the approved technical and functional specifications by the General Director of TAK, and that does not violate in any manner the integrity of the EFE fiscal data.

3. Testing that confirms in writing the normal functioning of the software includes:

   3.1. Full details on the application software manufacturer;

   3.2. The exact distribution name and current software version number;

   3.3. A copy of the demonstration version of the specific software stored in an appropriate format and medium; and

   3.4. Complete data on software requirements and operating conditions in computer;

4. The operation of the EFE with an interconnected system that uses unauthorized application software for issuing fiscal coupons, which is prohibited and subject to punishment as provided by the relevant legislation;

5. The functional and technical specifications of software in special cases are determined by decision of the Director General of TAK.

Article 15
The Communications Network

1. For the electronic transmission of fiscal data at predetermined intervals, a communication network between EFE/FS and TAK through SCM and TT is established.

2. The TAK Information System can establish communication (on demand) with the SCM and EFE/FS and requires:

   2.1. Daily report;

   2.2. The total of fiscal coupons fiscal; and

   2.3. Other information required by TAK.

3. The fiscal data communication networks between the EFE/FS and TAK must be:

   3.1. Safe – all connections must operate on Virtual Private Networks (VPN), between TT and the TAK computer system, connected via the internet. Telecommunications providers are responsible for implementing and maintaining the VPN topology and VPN operation through GPRS technology. They support any TT with SIM card and a dynamic address. TT should be reconfigured to work with only one EFE/FS;

   3.2. The Electronic Fiscal Equipment communicates with the TAK Information System within a schedule at the time set by the TAK Information System through the SCM. Also, the TAK Information System can at any time establish communication with the EFE/FS/SCM;

   3.3. Efficient – no unnecessary traffic or journey is allowed unless specified from the TAK Information System. Network traffic should be allocated in a manner that will reduce costs for TAK and the taxpayer, while simultaneously meeting all specified requirements; and

   3.4. Compatible – EFE/FS and transmitting devices must be compatible with all communication protocols and standards. Communication with the TAK Information System via TCP/IP socket according to specific technical and functional requirements required by TAK.

4. Telecommunications providers must be authorized by the competent authority to provide services for the transfer of fiscal data from EFE/FS to the TAK system, according to specific technical and functional requirements determined by TAK.

Article 16
Information System Integrated in TAK

1. The TAK IT system must accept encrypted (encrypted) fiscal data and other data transmitted by the EFE/FS from all taxpayers connected to the TAK system.

2. The IT system will automatically process the information received from the EFE/FS for each taxpayer.

3. The frequency of data transmission from the EFE/FS to the TAK Information System will be determined by decision of the TAK Director General.

Article 17
Authorizations of Economic Operators

1. Economic Operators, authorized according to the legal provisions before the entry into force of this Instruction, are considered to be authorized to carry out the process of fiscalization of taxpayers with EFE/FS, until the end of the transitional period, or until the period determined by another decision by the relevant Minister of Finance.

2. The Economic Operator is obliged to support with spare parts and maintain the EFE/FS which are in use by taxpayers for at least five (5) years from the last sale date of EFE/FS in the Kosovo market or until the end of the transitional period, or until the period determined by another decision by the relevant Minister of Finance.

3. If a EFE/FS model is not re-certified by the EO for any reason, then this model is not eligible to be sold by the EO and by taxpayer as EFE/FS.

4. Electronic Fiscal Equipment which has been used by the same taxpayer for five (5) years, and which furthermore is not supported by spare parts by EO, cannot be used as EFE/FS.

5. Exclusion from paragraph 4 of this Article, the EFE/FS which, even after five (5) years of use, meets the specific technical and functional requirements and is supported by the EO, may be used as a EFE/FS until the end of the transitional period, or until the period determined by another decision by the relevant Minister of Finance.

Article 18
Application about Economic Operator and EFE/FS

1. Any manufacturer, importer or assembler of EFE/FS, can become an authorized EFE/FS Operator, for one or more specific models at any time according to criteria published by TAK.

2. The application to be an EO is submitted at any time, but the sale of electronic fiscal equipment can only be made after approval by the FCRD.

3. EFE/FS certification is carried out by competent and authorized Institutes, Laboratories or Institutions for testing and verifying compliance with specific technical and functional requirements determined by TAK.

4. Authorization of competent Institutes, Laboratories or Institutions is done based on the criteria stipulated by ATK.

5. Installation and maintenance of the EFE/FS is carried out only by EO personnel. who sold EFE/FS.

6. The Fiscal Cash Register Division is responsible for requesting and verifying any information and data, including: evidence of experience, solvency, credibility, technical personnel and similar data.

7. The Fiscal Cash Register Division, within thirty (30) days from the date of receipt of the requests and information, decides whether or not to grant authorization to the EO.

8. The Fiscal Cash Register Division is responsible for withdrawing and canceling the authorization granted in the event that:

8.1. Users face serious problems;

8.2. The Economic Operator has violated any provision of this or any other sub-legal act issued in relation to the EFE/FS;

8.3. In cases where the EO fails to certify at least one model of EFE/FS by the competent authority within twelve (12) months from the date of receipt of authorization from TAK;

8.4. The Economic Operator does not submit tax statements or does not fulfill tax obligations on time even after the request sent by TAK;

8.5. In the event of a change in the conditions under which the authorization was granted, which are not updated by the Economic Operator.

9. An appeal against the decision of the DAF may be filed with the Special Commission for the Review of Appeals, established by the Tax Administration of Kosovo.

10. Periodic tests, upon request, through checking for proper operation of the equipment may be carried out by FCRD, or by designated institutions, laboratories or organizations authorized by this Division, to ensure that after initial approval, the EFE/FS continue to meet the relevant requirements and operate reliably even after installation at points of sale.

11. The Kosovo Tax Administration is entitled to review any installation of EFE/FS completed by any Operator, to ensure that it works in accordance with established requirements and specifications. In addition, TAK has the right to review registrations of any operator to be assured that it meets all the requirements set out in relation with authorization to act as a supplier, installer and maintainer of EFE/FS .

12. The Kosovo Tax Administration, with the approval of the relevant Minister of Finance,

determines the basic conditions, procedures that must be followed and documents that must be submitted when requesting authorization for the supply, installation and maintenance of EFE/FS. In this document, in addition to other requirements that TAK may impose, it must request that:

12.1. The Economic Operator shall guarantee the work with a bank guarantee, or other forms of acceptable guarantee;

12.2. The Economic Operator must be re-licensed every four (4) years by TAK;

12.3. The Economic Operator must have the certified EFE/FS models re-certified by the competent authority every four (4) years;

12.4. For any failure to comply with the conditions set by TAK during the performance of its activities in the sale, installation and repair of EFE/FS, the EO will be directly responsible and will be subject to the legal responsibilities provided for by applicable legislation;

12.5. For control purposes by TAK, the EO prepares a user manual for accessing and extracting information from the EFE/FS;

12.6. The Economic Operator must ensure that telecommunications between the EFE/FS and the TAK information system are carried out through a telecommunication operator authorized by the competent authority;

12.7. The Authorized Economic Operator enters into an agreement with the authorized telecommunications operator which contains, among other things, the appropriate guarantee for continuous telecommunications capabilities between the EFE/FS and the information system at TAK; and

12.8. The EO's agreement with the authorized telecommunications company must provide guaranteed replacement or repair of their own communication equipment (modem) and similar equipment), within forty-eight (48) hours after the problem has been reported;

13. The Economic Operator is obliged to respond to all requests from taxpayers to be equipped with EFE/FS within a maximum period of fifteen (15) days from the date of submission of the request for supply of equipment.

14. The Economic Operator is obliged to intervene and eliminate the malfunction of the EFE/FS according to the requests of taxpayers and TAK for servicing and maintenance of the EFE/FS, within a period not later than forty-eight (48) hours from the moment the problem appears.

Article 19
Issuance of the unique EFE/FS certification number

After successfully passing all tests for the specific model of equipment, FCRD issues the EO with a unique protected authorization number. This authorization is proof to the buyer that that EO is authorized to sell that equipment and that it meets all specifications and conditions for use as a EFE/FS. FCRD based on the testing results should issue a decision for certification of the relevant equipment within fifteen (15) days after receiving the report from the competent and authorized Institutes, Laboratories or Institutions for testing and verification of compliance with the specific technical and functional requirements determined by TAK.

Article 20
Maintenance of data related to EO, installed EFE/FS and users

1. The Kosovo Tax Administration maintains electronic records of data for all installed EFE/FS, which include:

   1.1. identification of the installed device, type of EFE/FS, serial number of EFE/FS, serial number of fiscal memory, serial number of KK, manufacturer and model of EFE/FS and other data described in the technical specifications;

   1.2. the date when the EFE/FS was installed and when it was approved by TAK;

   1.3. name, address and unique identification number/fiscal number of the user;

   1.4. the place where the EFE/FS is installed;

   1.5. the name of the EO, its address, unique identification number/fiscal number and VAT number of the authorized person;

   1.6. the authorization number issued to the EO, for the specific type of EFE/FS;

   1.7. data on persons authorized by the EO who supply, install and maintain the EFE/FS;

   1.8. persons authorized to repair the EFE/FS, including the type of EFE/FS that the person is authorized to repair, his/her name and address, card identification number, personal identification number and expiration date of the authorization; and

   1.9. the authorization number issued for each specific EFE/FS.

2. The Kosovo Tax Administration maintains and updates the database for electronic records.

Article 21
Authorized technicians

1. The Authorized Economic Operator appoints technicians who install and repair the EFE/FS, for which it is authorized to sell. The installation of the authorized EFE/FS must be carried out only by the designated technician. The authorized EO may contract third parties who are not employed by it to maintain the EFE/FS. However, this does not relieve the EO of its responsibility to ensure that the maintenance is carried out correctly and in accordance with the established procedures.

2. The Authorized Economic Operator shall submit to the FCRD the names, addresses and personal identification numbers of the technicians before they are authorized to install and repair the EFE/FS. The Authorized Operator shall include all necessary company and personal data (including technical qualifications), as well as a photo identification document.

3. The Fiscal Cash Register Division reviews the data submitted by the authorized EO, and may request necessary clarifications, before issuing or refusing authorization, for technicians who will install or repair the EFE/FS. The FCRD may request:

   3.1. A statement that the individual is authorized by the EO and certified by the manufacturer to install and maintain the designated EFE/FS; and

   3.2. List of types of EFE/FS that the technician is authorized to install or maintain.

4. Upon approval of the technician, FCRD will request from the relevant institution to provide an identification card with a photograph that identifies this individual as an installation and maintenance technician. The technician is provided with a unique identification number which will be compared with his/her personal identification number in the database maintained by TAK, described in this Instruction.

5. The Identification Card contains:

   5.1. Name and surname of the technician;

   5.2. Unique identification number (stamp);

   5.3. Dates until which the identification card is valid.

6. The Fiscal Cash Register Division may also authorize other technicians to maintain the EFE/FS. The person seeking authorization as a maintenance technician shall submit an application to the FCRD before performing any maintenance on the EFE/FS. The application for authorization shall include: name, address, personal identification number, employment history, technical experience, and a photo identification document. Attached to the application

shall be a certificate from the authorized EO stating that he is technically capable of maintaining the EFE/FS, copies of diplomas or certificates for technical training and knowledge of the EFE/FS.

7. The Fiscal Cash Register Division reviews the request and makes a decision. In case of rejection of the request, a written notification of the reasons for the rejection shall be made. The request shall be rejected only if the documentation is incomplete, or the applicant does not meet the conditions to be an authorized maintenance technician. If the applicant's request as a maintenance technician is approved, the FCRD shall implement the procedures of paragraph 4 of this Article.

8. The validity of the authorization for installation and maintenance technicians shall be three (3) years. After this period, an application for renewal of the authorization shall be made. Maintenance and installation technicians shall submit to DAF an application for renewal at least forty-five (45) days before the expiration of the existing authorization. The application for renewal shall include the data and certificates required under the conditions in force at the time of the new application. The continuation of the authorization shall be approved by DAF, unless there is evidence that the technician has any technical or legal impediment to the installation and maintenance of EFE/FS.

9. If a technician authorized for installation and maintenance of EFE/FS, ceases the activity for which he/she is authorized, before the expiration of the authorization, the EO notifies TAK (revoke the authorization and return the identification card) within thirty (30) days after the cessation of the activity.

Article 22
Security of access within the EFE/FS

1. The safety of access to the interior of the EFE/FS is protected by a special nut (bolt), which connects the upper part of the EFE/FS to the lower part. This nut is placed on the visible part of the EFE/FS housing cover so that intervention inside the EFE/FS is impossible without removing the protective nut (bolt).

2. The security seal - the seal, is used to seal the nut (bolt) which does not allow scratching and is made in such a way that it is impossible to remove without damaging it.

3. If a technician or authorized EO discovers that the seal seal has been damaged on the EFE/FS, the technician must immediately report the case to the relevant unit at TAK. The technician shall not make any intervention until authorized by TAK.

4. If a TAK employee identifies a damaged seal, he or she shall immediately notify the responsible TAK official to remove the EFE/FS from the power supply and not use it until it has been examined and determined to be functioning normally.

Article 23
Authorized technicians - access control code

1. The opening and re-sealing of a EFE/FS is carried out only by a technician authorized by the FCRD in accordance with Article 21 of this Instruction.

2. The authorized technician applies relevant configurations with a EFE/FS software program, using a special algorithm, access code and password.

Article 24
Installation, control, maintenance of EFE/FS

1. The Economic Operator must ensure that each installed EFE/FS operates without any hindrance and in accordance with the specific technical and functional requirements for EFE/FS, determined by TAK Information System.

2. Each EFE/FS must be accompanied by an installation, control, and maintenance log provided by the EO.

3. Before installing the EFE/FS, the EO must inform TAK about the EFE/FS purchaser, providing data such as:

   3.1. The buyer's Unique Identification Number;

   3.2. The buyer's Fiscal Number (if there is no Unique Identification Number);

   3.3. The serial number of the EFE/FS to be installed;

   3.4. The type of EFE/FS to be installed; and

   3.5. Expected installation date.

4. During the installation of the EFE/FS, the technician conducts a communication test to ensure that the EFE/FS is able to establish the TT communication connection with the ATK server.

5. After installing the EFE/FS, the Economic Operator reports electronically to TAK about the installed EFE/FS, including sales invoice data, device functionality, and the date of installation.

6. The Economic Operator must not program the EFE/FS or influence it in other ways that hinder or block the functionality of the EFE/FS at certain periods or deadlines.

7. The authorized technician is obliged to record in the diary detailed information for each installation, control, maintenance, of the EFE/FS, including the start and end time of the installation, control and maintenance process, as well as the data described in his identification card.

8. After maintenance of the EFE/FS, which had a defect, the repair technician submits to TAK a report describing the defect, the date and time the defect occurred, and the date and time the EFE/FS was returned to service.

9. After installation, inspection, and maintenance of each EFE/FS, the authorized technician must verify the functionality of the EFE/FS.

10. Each EFE/FS sold and installed must undergo a regular technical inspection on a regular basis every twenty-four (24) months. The regular inspection report and any other inspection must be sent to TAK, in electronic form, within five (5) days, after the inspection has been carried out. The Crypto Card, without the need for changes, must be functional and maintain the system security standard.

11. The EFE/FS user is obliged to keep the journal specified in paragraph 2 of this article and submit it to TAK upon request.

12. Each time the taxpayer requests it, the installed EFE/FS must be subject to inspection by the EO, in order to provide maintenance service and avoid malfunctioning of the device.

13. The Economic Operator is obliged to intervene and eliminate the malfunction of the EFE/FS according to the requests of taxpayers and TAK for servicing and maintenance of the EFE/FS, within a period not later than forty-eight (48) hours from the moment the problem appears.

14. The Kosovo Tax Administration has the right to review any installation, inspection or maintenance of the EFE/FS, as well as the journal entries made by the authorized technician, to ensure that the installation, inspection and maintenance, as well as the entries, have been made in accordance with the requirements and conditions set by the TAK.

Article 25
Transfer of EFE/FS

1. Each authorized EO may take over the supply, installation and maintenance of the EFE/FS of another EO, in cases where the other EO discontinues the activity related to the supply, installation and maintenance of the EFE/FS.

2. For the implementation of paragraph 1 of this Article, the EO must have an agreement with another EO for the transfer of rights and responsibilities for the supply and installation of EFE/FS remaining in stock to the other EO, as well as the maintenance of EFE/FS which have been sold and installed by the other EO.

3. For the implementation of paragraphs 1 and 2 of this Article, EO/ss shall notify TAK thirty (30) days in advance.

4. The Authorized Economic Operator may not discontinue the activity related to the supply, installation and maintenance of the EFE/FS if the agreement specified in paragraph 2 of this article has not been reached.

5. By way of exception from paragraph 4 of this Article, the authorized EO may discontinue the activity related to the supply, installation and maintenance of the EFE/FS if the implementation of paragraph 2 of Article 18 of this Instruction has been completed.

Article 26
Use of the tax coupon

In the event of a temporary breakdown or other technical problems of the EFE/FS, the user is obliged to issue a written tax coupon for each sale made. The tax block (in physical or electronic form), which contains the serial numbers, will be approved by TAK. A written report is made for all tax coupons issued during the sale as a result of the breakdown or technical problems of the EFE/FS. After the breakdown or problem of the EFE/FS is eliminated, the user immediately returns it to work. Details regarding the tax coupon are determined by TAK.

Article 27
Reading mode (“X” ratio)

Each EFE/FS must allow the reading and printing of data recorded in the fiscal memory via the keyboard for a variety of statistical reports, which are for statistical purposes only, and not for tax purposes. The conditions for the reading regime are determined by the Director General of TAK.

Article 28
Closing mode (“Z” ratio)

1. Each EFE/FS contains the conditions defined according to the functional and technical specifications determined by TAK, as follows:

   1.1. preparing the fiscal closing of daily turnover, printing the daily tax report and the data that must be transmitted to TAK;

   1.2. the possibility of reading the contents of the fiscal memory through periodic tax reports in accordance with published specifications;

   1.3. ensuring the conditions for carrying out verification for each daily tax report for the purpose of checking the accuracy of the functioning of the fiscal memory; and

   1.4. providing daily reports and other periodic tax reports that are characterized by the title of the report accompanied by the sign “Z”, as well as containing at the end of the coupon (in bold) the fiscal logo and the name "TAX REPORT".

2. Exception from paragraph 1, subparagraph 1.1. of this Article, in cases where the taxpayer notifies TAK of the temporary interruption of economic activity, then for the period of interruption (pause) the fiscal closing of the daily turnover, the printing of the daily tax report and the data that must be transmitted to TAK are not required.

Article 29
Programming Module (P)

1. Each EFE/FS contains, among other things:

   1.1. The possibility of recording in the fiscal memory the taxpayer's data, which must be presented on the fiscal receipt;

   1.2. The possibility of programming at least four (4) tax rates. Tax rates are written in the fiscal memory. This is allowed at the time of installation or after closing the daily tax report and transmitting the “Z” data to the ATK. There must be the possibility of presenting the different tax rates with the letters “A” to “E”. The letter “A” means the tax rate exempt from VAT, while the letters “B” to “E” the different forms of VAT tax rates provided for by the VAT Law. The change of the tax rate occurs only after the daily tax

report is finalized and the relevant data has been transmitted to the relevant fiscal memory. Changes in the fiscal memory can be made within the special content for changing tax rates. Changes to the tax rate are carried out by the maintainer based on the special manual for changing tax rates;

1.3. Allowing the programming of communication parameters with the TAK communication network for the transmission of periodic tax reports; and

1.4. Allowing configuration and reading of fiscal memory.

2. The Director General of TAK will issue a decision to limit and establish the functions and specifications for the programming regime.

Article 30
Electronic journal of fiscal coupons

1. The electronic journal of fiscal coupons stores fiscal documents in electronic form as well as in the electronic journal (memory card).

2. The Director General of TAK will approve the requirements and technical specifications for the electronic journal of fiscal coupons.

CHAPTER IV
ELECTRONIC FISCAL SOFTWARE

Article 31
Persons obliged to install Electronic Fiscal Software

1. The persons obliged to install EFS are as follows:

1.1. Taxpayers defined in Article 5 of this Instruction, who exercise economic activity, in retail sales, in the provision of services in places or units open to the public or any other similar activity, including public enterprises and socially owned enterprises, are obliged to use EFS and other mandatory devices for the registration and verification of the supply of goods and/or services; and

1.2. Public institutions that accept cash payments for provided services.

2. For the purpose of implementing paragraph 1 of this Article, the person issuing fiscal coupons may test the fiscal coupon data and the fiscalization procedure.

3. The methodology for testing fiscal coupon data and the fiscalization procedure by the taxpayer issuing fiscal coupons is determined by TAK.

4. In the event of any change in the use of the EFS (location, sale, transfer, deregistration, cessation of economic activity or similar), the EFS user must notify TAK in accordance with the procedures established by TAK.

5. Based on paragraph 1 of this Article, the following categories are not obliged:

   5.1. Public institutions that provide services for which they accept payments through bank accounts or other forms of electronic payments.
   5.2. A person (business) who provides supplies of goods and/or services only to a person engaged in economic activity (business). This person is obliged to issue a tax invoice, as defined by the tax legislation in force.

6. The person to whom the obligation specified in paragraph 5 of this article refers and who simultaneously carries out activities that are not exempted or exempt from the obligation to register through EFS and transfer data to the TAK Information System, within the meaning of paragraph 1 of this article, will be obliged to register each individual transaction during the performance of these activities in the EFS, through which the data are transferred to the TAK server.

7. The relevant Minister of Finance, in addition to the exceptions set out in paragraph 5 of this Article, may, by special decision, exempt any other category of taxpayers from the obligation to install EFS.

Article 32
Electronic Fiscal Software

1. The Electronic Fiscal Software enables the storage of each transaction in an electronic register (database), electronically signed for each fiscal coupon, using the digital certificate, according to Article 35 of this Instruction, and an internet connection for electronic data exchange with the TAK Information System.

2. The Electronic Fiscal Software through which the supply of goods and/or services is recorded must fulfill at least the following functions:

   2.1. be able to electronically sign every fiscal coupon;

   2.2. to be identified through a digital certificate in the TAK system;

   2.3. establish a connection for secure data exchange with the TAK Information System via the internet;

2.4. support communication via Secure Protocol Hyper Text Transfer Protocol (HTTPS);

2.5. generate and send a fiscal coupon according to the required specifications, including the QR Code;

2.6. to be connected to a printer for printing the fiscal receipt, according to the format predetermined by TAK;

2.7. to perform the update (Upgrade) as needed;

2.8. be able to send requests (messages) in TAK system stipulated by TAK; and

2.9. to strongly support linguistics, according to the legislation in force on the use of official languages in the Republic of Kosovo.

3. The Electronic Fiscal Software, in cases of interruptions in communications with the TAK Information System, must enable the generation of fiscal coupons and store them safely within FES. The moment communication with the TAK Information System is restored (the communication with the TAK Information System is reset), this information is automatically sent to TAK Information System.

4. Electronic Fiscal Software may be suitable for use via Personal Computer (PC), Laptop, Tablet, smart mobile phone, etc.

5. The Director General of TAK will issue a decision on the minimum functional and technical specifications and the manner of implementation of the EFS.

Article 33
Information System of Tax Administration of Kosovo

1. The Kosovo Tax Administration Information System must enable:

1.1. secure connection for data exchange with EFS, via the internet and the “Secure Hyper Text Transfer Protocol (HTTPS);

1.2. validation of the taxpayer’s identity through a digital certificate;

1.3. receiving real-time requests sent by EFS for any supply of goods and/or services;

1.4. receiving and storing information from each taxpayer separately;

1.5. processing data received in real time from EFS;

1.6. verification of the fiscal coupon by the citizen through a special application; and

1.7. other important functions that will be described with technical and functional specifications.

2. The Director General of TAK will issue a decision on the technical and functional specifications and the mode of operation of the TAK Information System.

Article 34
Digital Certificate and Private Key

1. In order to implement the fiscalization procedure of fiscal coupons, the taxpayer, for each EFS installed at points of sale that issues fiscal coupons, must be provided with a digital certificate, which is generated and issued by TAK or another relevant authority for issuing digital certificates.

2. For each installed EFS, a Private Key must be generated by the taxpayer, which must be stored at a high level of security, without compromising its compliance and confidentiality.

3. The person issuing fiscal coupons, during the process of equipping with a digital certificate and private key for each installed EFS, must submit the following data in electronic form:

3.1. Unique Identification Number/Fiscal Number;

3.2. Unit Number;

3.3. POS Number;

3.4. Software Solution Code; and

3.5. Fiscalization Number, which is obtained in the TAK Electronic System

Article 35
Application and registration of SEF developers and maintainers

1. Any natural or legal person who develops or maintains a EFS for taxpayer fiscalization needs, according to the technical and functional specifications determined by TAK, may apply for registration and certification of that EFS to the Commission composed of TAK.

2. The developer and/or maintainer of EFS, referred to in paragraph 1 of this Article, should be authorized by the Commission, before starting to exercise the activity of providing these software solutions and/or maintenance services in the territory of the Republic of Kosovo.

3. The request for EFS certification may be submitted at any time, but the sale and installation of the EFS to the taxpayer can only be made after certification by the Commission.

4. The Commission, within fifteen (15) working days from the date of receipt of the request for certification of the EFS, decides on approval or rejection of certification of EFS.

5. The conditions and procedures for applying for EFS certification and EFS maintenance are determined by a special Commission from TAK.

6. The Commission electronically registers the certified EFS in the registry of software developers or maintainers managed by the Commission.

7. The registration of the SEF developer according to paragraph 6 of this article does not replace the obligation to register with the Kosovo Business Registration Agency (KBRA) or TAK, which carries out commercial and non-commercial activities, in accordance with the relevant legislation in force.

8. After registration, the person referred to in paragraph 1 of this Article shall be provided with the EFS unique code. This code, together with the UIN/FN of the software developer, must be integrated into the software solution by the software developers before delivery to the taxpayer issuing fiscal coupons, so that the fiscal system can identify the developer and the software solution used during each delivery of fiscal coupons in the fiscalization procedure.

9. The Commission shall send the registration code of the software solution electronically to the person specified in paragraph 1 of this Article. This code shall be stored in the Electronic Fiscal Software Registry managed by the Commission.

10. Every taxpayer who issues fiscal coupon, must notify TAK of the software solution used for issuing fiscal coupons, as well as the developer and maintainer of the software solution.

11. The registration of the software developer and software solution is carried out in each fiscalization, since the data of the software solution used is an integral part of the data for the fiscalization of fiscal coupons. Whereas, the data on the maintainer must be recorded during the registration of data for the place of exercise of the taxpayer/person's activity or within each electronic device for issuing fiscal coupons, if the taxpayer/person has different maintainers.

12. The taxpayer/person issuing fiscal coupons may not issue fiscal coupons if the software developer and the software solution it uses are not registered in the register of software developers and/or certified maintainers by the Commission. For this purpose, any taxpayer/person issuing fiscal coupons may check through the name/first name and surname or the code/unique identification number of the software developer whether that developer

and the software solution are registered in the register.

13. The taxpayer/person issuing fiscal coupons and developer and/or software maintainer are responsible for the functioning of software solution according to technical specifications determined by TAK.

Article 36
Cancellation of the EFS certificate

1. The Commission is responsible for withdrawing and canceling the certificate issued to the EFS, in the event that:

   1.1. users face serious problems related to the functioning of EFS;

   1.2. the EFS developer has violated any provision of this or any other by-law issued in relation to the EFS;

   1.3. in the event of a change in the conditions under which the certificate was issued, which are not updated by the EFS developer.

2. An appeal against the decision of the Commission may be filed with the Special Commission for the Review of Appeals, established by the Tax Administration of Kosovo

3. The Tax Administration of Kosovo is entitled to verify any EFS installation realized by any EFS developer, to ensure that it works in accordance with the technical and functional specifications, as well as other necessary elements.

Article 37
Communication network between EFS and TAK Information System

1. For the electronic transmission of fiscal data using the internet, a communication network is created between the EFS and the TAK Server.

2. Fiscal data communication networks between EFS and the TAK Information System must be:

   2.1. safe – all connections between EFS and the TAK Information System, connected via the internet, must be encrypted and signed with the Private Key, according to technical and functional specifications;

2.2. direct – the establishment of communication between the EFS and the TAK Information System is done through the HTTPS protocol, using the Internet;

2.3. efficient – no unnecessary traffic or routing is allowed unless otherwise specified by TAK. Network traffic should be assigned in a manner that will reduce traffic costs for TAK and the taxpayer, while meeting all specified requirements; and

2.4. compatible – EFS must be compatible with all protocols and standards for communication with the TAK Information System.

Article 38
Sales through self-service equipment (vending machines)

1. A self-service equipment (machine) that generates turnover from the sale of goods and/or services is considered any automated equipment, where during the supply of goods and/or services and the collection of payments no individual participates in the capacity of the seller. Self-service equipment for fiscalization purposes are not considered to be bank ATM/s or e-banking (electronic banking services).

2. The self-service equipment (vending machine) performs the fiscalization process by reporting sales data at the time of sale of goods and/or services to the TAK Information System through an internet connection.

3. Each self-service device is considered an electronic equipment for cash sales, for which the taxpayer's place of business must be registered and fiscal coupons must be recorded/declared in the taxpayer's books.

4. When submitting data regarding a self-service device (vending machine) under paragraph 3 of this article, the taxpayer must indicate the address where the self-service device is located or its closest address (geographical location) and also describe the exact location in a given area.

5. On each self-service device (vending machine), the taxpayer issuing fiscal coupons must place a sticker with a printed QR code containing the following data:

   5.1. The Unique Identification Number of the taxpayer; and

   5.2. 5EFS identification number.

6. A decision is issued by the Director General of TAK regarding the technical and functional specifications of self-service devices (vending machines) and data exchange with the TAK Information System.

7. If the self-service device has a temporary interruption in the communication service with the

TAK Information System, the taxpayer issuing fiscal coupons must ensure the storage of sales data and perform the fiscalization procedure, after eliminating the problem or restoring the connection, within forty-eight (48) hours.

8. Taxpayers operating in specific sectors of the economy (e.g. the hydrocarbon sector, car washes, electricity supply, or similar) and making sales through self-service machines (vending machines), must enable the printing of fiscal coupons when making sales through these devices.

Article 39
Fiscal coupon and QR Code generation

1. The Fiscal Coupon must be printed on paper for all supplies of goods and/or services made to final consumers (individuals). However, if electronic services are provided or the supply of goods and/or services is contracted and charged through a mobile application, online store or similar, the fiscal coupon may not be printed on paper, but may be sent to the buyer or recipient of the fiscal coupon, in electronic form. For example, in the case of distance selling if the customer (an individual) pays by credit card, then this is considered to be a cash payment, but the fiscal coupon may not be printed on paper, so instead, the seller may send the fiscal coupon to the buyer in electronic form.

2. In the case of non-cash payments, for transactions with individual consumers, the fiscal coupon can be printed on paper or sent in electronic form. The buyer must consent to receiving the fiscal coupon in electronic form.

3. To ensure easy verification of the issued fiscal coupon, a QR Code must be generated for each fiscal coupon. The QR Code is a mandatory element of the fiscal coupon, both in the case when the fiscal coupon is successfully reported to TAK and fiscalized, and in cases when the fiscal coupon cannot be fiscalized, such as: due to lack of internet, availability of the fiscalization service server, etc. The QR Code contains fiscal coupon data, as well as the digital signature.

4. The QR code, along with other mandatory elements of the fiscal coupon, should be an integral part of each fiscal coupon issued to the final consumer, regardless of whether the fiscal coupon is printed on paper or sent electronically to the consumer.

5. The software solution used for issuing fiscal coupons and their fiscalization must automatically create a unique number in the format specified in the technical specifications published on the TAK website.

Article 40
Fiscal Coupon Notification

1. The taxpayer, who issues fiscal coupons, is obliged to display a notice on each electronic payment device or in another visible place in the taxpayer's premises, indicating the obligation to issue the fiscal coupon as well as the obligation of the buyer to receive and store the fiscal coupon.

2. As an exception to paragraph 1 of this article, the taxpayer, who issues fiscal coupons, who implements the procedure of fiscalization of sales through self-service devices (vending machines), is obliged to present a notification for fiscalization of sales through these devices at each self-service device.

3. The Kosovo Tax Administration shall determine the content and appearance of the notice referred to in paragraphs 1 and 2 of this article.

Article 41
Buyer's obligations

The buyer or recipient of a fiscal coupon issued or received electronically must keep the fiscal coupon issued or prove receipt of the fiscal coupon electronically, up to thirty (30) meters after leaving the place of business of the seller, i.e. the taxpayer who issued the fiscal coupon. Upon request of an authorized TAK official, the purchaser must show the fiscal coupon issued.

QR Code Example



RKS
MF

Article 42
Fiscal Coupon Verification

1. Buyers and all recipients of fiscal coupons, for all coupons received from taxpayers/persons who are obliged to issue fiscal coupons, can verify whether the fiscal coupon is reported to TAK.

2. Verification will be done by scanning the QR Code on the fiscal coupon, through a special application, from a smartphone or any other electronic device that has the scanning function. The QR Code creates a connection to the TAK Information System with details of the scanned fiscal coupon. Here is an example of the QR code found on the fiscal coupon.

3. The purchaser and all recipients of the fiscal coupon can also perform the verification of the fiscal coupon by making a request in the web browser or mobile phone application available on the TAK website and manually entering the required data (for example, FCUIN). In situations where the fiscal coupon is issued manually from the special fiscal coupon block or when some of the mentioned data is missing, the purchaser can verify the fiscal coupon at the nearest TAK office.

4. After scanning the QR Code or entering the data according to paragraph 3 of this article, the page with details about the fiscal coupon opens, where there is an icon that indicates the status of the fiscal coupon. There are possible cases, such as:

   4.1. The fiscal coupon has been successfully registered; or

   4.2. The fiscal coupon has a problem that needs to be reported.

5. If the fiscal coupon is successfully registered, information about the fiscal coupon issued is displayed.

6. If the fiscal coupon has not been registered, a message will appear instructing the buyer to verify later, this is because in some cases the fiscal coupon can be registered after it has been issued, but the registration must be done within the time limit.

7. Sometimes an issued fiscal coupon needs to be corrected, so the taxpayer who issued the fiscal coupon will issue a corrective fiscal coupon and fiscalize it by referring to the original fiscal coupon. In this situation, the buyer will receive one of the following warning messages:

   7.1. "Fiscalization successful, but this is a correction of another fiscal coupon" - In this situation, the buyer has verified the corrective fiscal coupon and a reference to the original fiscal coupon being corrected (its FCUIN) will appear. If the buyer has not received the original fiscal coupon, to which this corrective fiscal coupon is linked, then it is most likely that the taxpayer has committed a violation and the buyer must report it to the TAK, directly in the request.

7.2. "Fiscalization successful, but there is a corrective fiscal coupon for this fiscal coupon" - In this situation, the buyer has verified the original fiscal coupon and the reference to his corrective fiscal coupon has been issued and fiscalized after the fiscal coupon appears (his FCUIN). If the buyer has not received the corrective fiscal coupon, this means that it is very likely that the taxpayer has committed a violation and the buyer should report it to the TAK, directly on the application.

8. In case there is a problem with the fiscal coupon, which must be reported based on the fiscal coupon verified by the buyer and the data stored on the TAK Information System, the following situations may be encountered:

8.1. The fiscal coupon is not registered in the database - In this case, the fiscal coupon is not found in the TAK database, which means that it has not been fiscalized, and more than forty-eight (48) hours have passed since the issuance of the fiscal coupon and the taxpayer does not have an approval for monthly fiscalization or the deadline for subsequent fiscalization has not passed. In this case, TAK will conduct a detailed analysis.

8.2. The Unique Identification Number of the Fiscal Coupon is not valid - In this case the FCUIN is not formed properly and the error will appear. This error indicates that the fiscal coupon is suspicious and should be further analyzed by TAK.

8.3. The issued fiscal coupon details do not match the fiscal coupon details in the request - Possible reasons include a case where the fiscal coupon registration software contains some errors and registers a fiscal coupon with incorrect data. Another reason could be when the issued fiscal coupon has a fake code, FCUIN and QR Code, which are placed on the fiscal coupon only to make it look correct, but in reality, they may be linked to some other existing fiscal coupons.

8.4. The corrective fiscal coupon was not registered within the required deadline - In this situation, the taxpayer has verified the corrective fiscal coupon, but this fiscal coupon was not in the database, and more than forty-eight (48) hours have passed since the issuance of the corrective fiscal coupon and the taxpayer does not have an approval for the monthly fiscalization, or the deadline for the subsequent fiscalization has passed.

8.5. Fiscal coupon parameters do not match the fiscal coupon details in the application - In this situation, the QR Code on the issued fiscal coupon has a link to the online application with query parameters that describe some of the important details for identifying the fiscal coupon. These parameters include the FCUIN, the total amount, the date of issuance of the fiscal coupon and other information. It is possible that the QR Code contains invalid information, such as there is a fiscal coupon registered in the FCUIN by the QR Code, but other parameters, such as the total amount of the fiscal coupon, do not match the information on the fiscal coupon registered with the same FCUIN.

9. If a verification request is officially incorrect; the buyer or recipient of the fiscal coupon receives a message that it is necessary to check the accuracy of the information provided.

10. If the fiscal coupon verification system is temporarily unavailable, the purchaser or recipient of the fiscal coupon receives a message stating that the fiscal coupon verification system is temporarily unavailable.

11. If the fiscal coupon submitted for verification is not registered in the TAK database, or the buyer encounters any other problem with the fiscal coupon, the buyer or recipient of the fiscal coupon can report it directly in the "Denonco" application, which is published on the TAK website. The buyer can also submit fiscal coupons with some problems or irregularities to the nearest TAK office for control purposes.

Article 43
Fiscalization of correction/adjustment coupons

1. All obligations set forth in the provisions of this Instruction shall apply, as necessary, also to the issuance of corrective/adjusting fiscal coupons.

2. The corrective/corrective fiscal coupon must contain a reference to the original fiscal coupon being corrected.

Article 44
Disruption of electronic (internet) connection

1. In the event of interruption of the electronic connection (internet), the taxpayer issues a fiscal coupon, which contains the data specified in Article 7 of this Instruction.

2. The taxpayer who issues fiscal coupons must, within forty-eight (48) hours, starting from the moment of disconnection, establish an internet connection and submit to TAK all fiscal coupons issued under paragraph 1 of this article.

3. Fiscal coupons issued under paragraph 1 of this Article are considered to have been fiscalized correctly if the fiscalization process is completed within the deadline set out in paragraph 2 of this article.

4. In order for the process described in paragraphs 1 to 3 of this article to be an exception, the taxpayer issuing fiscal coupons must provide appropriate software and hardware support for the exchange and sending of data to TAK and appropriate electronic connections (internet).

5. If the taxpayer, who issues fiscal coupons, cannot, within the deadline specified in paragraph 2 of this article, restore the electronic connection (internet) due to the need to change the equipment for establishing the electronic connection (internet), the inability to establish the

electronic connection (internet), for which the provider of this service is responsible, or due to force majeure, he must notify TAK of this, electronically or in person at the relevant TAK office where the taxpayer is registered, as well as send documentation or other evidence proving the inability to establish the electronic connection (internet).

6. If it is impossible to establish the connection within the deadline specified in paragraph 2 of this Article, the taxpayer shall continue issuing fiscal receipts even without the fiscalization procedure, until the connection is restored. After the resumption of operation, they shall fiscalize all receipts issued in offline mode. If the interruption of the internet connection occurs during the month and the reconnection is not made by the tenth (10th) day of the following month, the taxpayer shall submit all unfiscalized fiscal receipts to the ATK.

Article 45
Fiscalization implementation device

1. Fiscalization implementation device completely stops working , the taxpayer, who issues fiscal coupons, issues a fiscal coupon from a separate block of fiscal coupons.

2. The taxpayer who issues fiscal coupons must fiscalize the special block of fiscal coupons at TAK.

3. The separate fiscal coupon block must have a printed serial number for each fiscal coupon it contains.

4. The special block of fiscal coupons contains two copies for each coupon: the original for the consumer and the copy that remains with the supplier of the goods and/or services.

5. In the case referred to in paragraph 1 of this article, the taxpayer issuing fiscal coupons is obliged, within forty-eight (48) hours from the moment the device has completely stopped functioning, to enable the functioning of the device for issuing fiscal coupons or to provide a new device.

6. Within five (5) days after the deadline set out in paragraph 5 of this article, the taxpayer who issues fiscal coupons according to paragraph 1 of this article is obliged to register all fiscal coupons in the EFS, which are automatically sent to the TAK Information System.

Article 46
Saving fiscal coupons

The taxpayer who issues fiscal coupons must take measures to preserve the issued fiscal coupons, in accordance with the applicable Law on the Administration of Tax Procedures.

Article 47
Incentive to receive fiscal coupons

1. For all persons who wish to participate in the prize game using fiscal coupons, the form and method of application is determined by TAK, after approval by the relevant Minister of Finance.

2. The procedures for implementing this provision will be determined by a special Guideline approved by the Director General of TAK, which defines the procedures for application, electronic verification of fiscal coupons and selection of beneficiaries.

Article 48
Data protection

The provisions of this Instruction are implemented in compliance with the provisions of the law in force on the protection of personal data.

Article 49
Fines and penalties

1. For non-implementation of legal provisions regarding fiscalization and issuance of fiscal coupons, fines determined by the Law in force on the Administration of Tax Procedures are applied.

2. The fines stipulated by the Law in force on the Administration of Tax Procedures, regarding the failure to install, supply and maintain EFE/FS, apply accordingly to Electronic Fiscal Software.

Article 50
Transitional provisions

1. The relevant Minister of Finance, by decision, determines the taxpayers and the period of transition from the use of Electronic Fiscal Devices/Fiscal Systems to Electronic Fiscal Software.

2. Taxpayers defined in Article 8 of this Instruction, who aren’t equipped with EFE/FS since the entry into force of this Instruction, but they are obliged to install and use EFS within sixty (60) days since this date. Within this period, these taxpayers are required to use fiscalized fiscal coupons in TAK.

Article 51
Repealing Provisions

1. This Instruction repeals Administrative Instruction MF-No. 02/2018 on the Use of Electronic Devices and Fiscal Systems.

2. Decisions issued by TAK in regard to EFS/FS, which aren't in contradiction with this Instruction, remains into force until the issuance of new decisions.

Article 52
Entry into force

This Instruction enters into force on the date of publication in the Official Gazette of the Republic of Kosovo.

Hekuran Murati

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Minister of Finance

Date, ____/_____/ 2026